Official Local Authority Search (CON29R + LLC1)

Search Details

Prepared for: Bramsdon & Childs Solicitors
Matter: 28271
Client address: 141 Elm Grove, Southsea, PO5 1HR

Property:
10 Colt View, Bishops, Waltham, SO32 1RE

Local Authority:
Winchester City Council
City Offices, Colebrook Street, Winchester, SO23 9LJ

Date Returned:	Property type:
22/09/2023	Residential - New Development

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InfoTrack UK Limited, Level 11, 91 Waterloo Road, London, SE1 8RT
T: 0207 186 8090 **E:** helpdesk@infotrack.co.uk

REGISTER OF LOCAL LAND CHARGES
OFFICIAL CERTIFICATE OF SEARCH

Search Reference: 2324_01246
NLIS Reference:

Applicant:

InfoTrack Reference: 44361269:28271

Level 11
91 Waterloo Road
London
SE1 8RT

Official Search required in all parts of the Register of Local Land Charges for subsisting registrations against the land described and the plan submitted.

Land:

10, Colt View
Bishops Waltham
Southampton
Hampshire
SO32 1TF

It is hereby certified that the search requested above reveals the 7 registrations described in the Schedule(s) hereto up to and including the date of this certificate.

If you have any queries regarding the results of this search, please contact the relevant departments concerned.
Building Control buildingcontrol@winchester.gov.uk 01962 848176
Planning planning@winchester.gov.uk 01962 848218
Environmental Health health@winchester.gov.uk 01962 848350
Land Charges landcharges@winchester.gov.uk 01962 848337

S151 Officer
Date: 22-Sep-2023
Winchester City Council,
Land Charges Section,
City Offices
Colebrook Street
Winchester,
Hants, SO23 9LJ

CON29 ENQUIRIES (2016 Edition)

Search Reference: 2324_01246
NLIS Reference:

Applicant:

InfoTrack
Level 11
91 Waterloo Road
London
SE1 8RT

Reference: 44361269:28271

Property:

10, Colt View
Bishops Waltham
Southampton
Hampshire
SO32 1TF

Other Roads etc:

I refer to your Local Enquiries relating to the above property. These replies relate to that property as shown on the location plan where supplied. The replies are given subject to the Notes to the Standard Enquiries.

All correspondence relating to these answers should quote the official Search Reference.

S151 Officer

Date: 22-Sep-2023

Winchester City Council,
Land Charges Section,
City Offices,
Colebrook Street,
Winchester,
Hants,
SO23 9LJ

Standard Enquiries of Local Authority

PLANNING AND BUILDING REGULATIONS

1.1 Planning and building decisions and pending applications

Which of the following relating to the property have been granted, issued or refused or (where applicable) are the subject of pending applications or agreements?

(a) a planning permission

(a) Reference: 82/01317/OLD
Alt Reference: W06920
Erection of farmhouse

Date of Decision : 06/10/1982
Date Decision Issued : 06/10/1982
Decision :Application Refused

Appeal Reference: 82/00018/REF
Appeal Date: 16/12/1982
Appeal Decision: Appeal Dismissed
The Vineyard
Tangier Lane
Bishops Waltham
Southampton
Hampshire
SO32 1BU

Reference: 84/00862/OLD
Alt Reference: W06920/01
Erection of agricultural workers dwelling

Date of Decision : 19/09/1984
Date Decision Issued : 19/09/1984
Decision :Application Permitted
The Vineyard
Tangier Lane
Bishops Waltham
Southampton
Hampshire
SO32 1BU

Reference: 85/00788/OLD
Alt Reference: W06920/02
Erection of house

Date of Decision : 22/05/1985
Date Decision Issued : 22/05/1985
Decision :Application Permitted
The Vineyard
Tangier Lane
Bishops Waltham
Southampton
Hampshire
SO32 1BU

Reference: 16/01322/FUL
Alt Reference: None
(Additional details submitted 01.09.16) Erection of 66 dwellings with associated access via Albany Road, associated parking, landscaping and public open space (Phase 1).
Date of Decision : 30/06/2017
Date Decision Issued : 30/06/2017
Decision :Application Permitted
Land To The West Of
Tangier Lane
Bishops Waltham
Hampshire

Reference: 18/01114/FUL

Alt Reference: WPP-06931432
Application Reference Number: 16/01322/FUL : Date of Decision: 30/06/2017 : Condition Number 05 (Materials).
Variation of Condition 05 to make reference to 'clay tiles' rather than 'clay plain tiles'
Date of Decision : 09/07/2018
Date Decision Issued : 09/07/2018
Decision :Application Refused

Appeal Reference: 18/00065/REF
Appeal Date: 03/09/2018
Appeal Decision: Appeal Allowed - Costs Refused
Land To The West Of
Tangier Lane
Bishops Waltham
SO32 1BU

Reference: 23/01670/NMA
Alt Reference: WPP-12269994
(Non-Material Amendment to original Planning Consent 16/01322/FUL) Concerning the Finished Levels of the Informal Open Green Space to the South-eastern Extent of the Development known as Albany Wood.
No Decision to dateLand To The West Of
Tangier Lane
Bishops Waltham
Hampshire

(b) a listed building consent

(b) None.

(c) a conservation area consent

(c) None.

(d) a certificate of lawfulness of existing use or development

(d) None.

(e) a certificate of lawfulness of proposed use or development

(e) None.

Informative

Note: Where attached lists are included in the response, all applications whose "W" No. is without a suffix are planning applications. Other relevant suffixes are as follows:-
LB or LBC - Listed Building Consent
LBCA - Conservation Area Consent (demolition of building in Conservation Area)
TPOCA - Conservation Area Consent (felling of tree in Conservation Area)
LDC - Lawful Development Certificates

(f) a certificate of lawfulness of proposed works for listed buildings

None

(g) a heritage partnership agreement

None

(h) a listed building consent order

None

(i) a local listed building consent order

None

(j) building regulations approval

Reference: 17/00094/DWELL
Alt Reference: IN17/0094
135 residential units
Decision: Approved Inspector - Accepted
Date of Decision: 10/01/2017
Land To The West Of
Tangier Lane
Bishops Waltham
Hampshire

(k) building regulation completeion certificate and

None.

(l) any building regulations certificate or notice issued in respect of work carried out under a competent person self-certification scheme?

None. NB. This would have been issued directly to the client by the competent person. No copies are submitted to, or held by the Local Authority.

Informative

For copies of decided planning applications please, in the first instance, check our web site at wwww.winchester.gov.uk/planning/Search planning applications

For Building Control applications
(1) This reply does not cover other properties in the vicinity of the property.
(2) The Council's reply regarding Building Regulation applications (including records of Building Regulation approvals and Building Regulation completions) will only extend back 15 years from the date of this search.

Further information (which is subject to an additional fee) may be obtained by contacting the Building Control Department, Winchester City Council, City Offices, Colebrook Street, Winchester, Hampshire, SO23 9LJ. Tel 01962 848176, email buildingcontrol@winchester.gov.uk (This includes, if available, copies of Building Regulation approvals and Building Regulation completion certificates; and/or a search of manual Council records prior to the date in (2)).

The fees are as follows:-
Searching the Building Control archives for the preceding 15 years - 12.50 (includes copies of any documents found).
Searching the Building Control archives back to 01 April 1974 - 37.50 (includes copies of any documents found).

Payment should be made in advance by Debit/Credit card by telephoning 01962 848176, or by cheque to "Winchester City Council".

If you wish copies of decided planning applications, please go to our web site in the first instance. For all other queries regarding the results of this search, please contact the relevant departments concerned.

Building Control buildingcontrol@winchester.gov.uk 01962 848176
Planning planning@winchester.gov.uk 01962 840222
Environmental Health health@winchester.gov.uk 01962 848350
Land Charges landcharges@winchester.gov.uk 01962 848122
Enforcement and compliance enf@winchester.gov.uk 01962 848480

1.2 Planning designations and proposals
What designations of land use for the property, or the area, and what specific proposals for the property, are contained in any existing or proposed development plan?

Local Plan Polices
The adopted plan comprises the Winchester District Local Plan Part 1:Joint Core Strategy, adopted March 2013, the Winchester District Local Plan Part 2 : Site Allocations and Development Management adopted April 2017 and the Denmead Neighbourhood Plan made April 2015.

Under the above plans, the following land use/policies are proposed for the land -

Policy Reference: LP1 MTRA2 BW
Policy Title: Market Towns and Larger Villages
Policy Content: The Local Planning Authority supports the evolution of the larger settlements in the Market Towns and Rural Area to maintain and improve their role and function and to meet a range of local development needs through :-

In Bishops Waltham and New Alresford, provision for about 500 new homes in each settlement and provision for about 250 new homes in each of the following settlements:-Colden Common, Denmead, Kings Worthy, Swanmore, Waltham Chase, and Wickham.

Economic and commercial growth will be supported to maintain and improve the shopping, service, tourism and employment roles of these settlements where consistent with their role in the hierarchy of retail centres. Proposals for new floorspace of 500 sq. m. or more outside defined centres will need to demonstrate that it would not have a harmful impact on the centre. There should be improvements to public transport provision, where possible, and development should be appropriate in scale and result in a more sustainable community by improving the balance between housing, employment and services. Existing facilities, services and employment provision should be retained or improved to serve the settlements and their catchment areas.

Housing, employment, retail and services should be accommodated through development and redevelopment opportunities within existing settlement boundaries in the first instance.

To view the full text of this policy please go to chapter 6 of the Winchester District Local Plan Part 1 Joint Core Strategy.

http://www.winchester.gov.uk/planning-policy/local-plan-part-1/adoption/

Policy Reference: LPP2 - BW3
Policy Title: BW3 The Vineyard Tangier Lane Housing Allocation
Policy Content: Land at The Vineyard and land east of Tangier Lane is allocated for the development of about 120 dwellings. PP will be granted provided that detailed proposals accord with the Development Plan and meet the following site specific development requirements
Nature and Phasing of Development
A masterplan establishing principles for the disposition of housing, open space, access points and linkages with adjacent sites and the wider countryside, including proposals for the SINC to ensure that there is no net loss of biodiversity for the whole allocated area, should be submitted with each application for development. Any subsequent applications for all or part of the site should also demonstrate how the proposal will accord with these principles and achieve the form of development intended by this allocation as a whole.
Access
provide 2 points of access via Albany Rd and Tangier Lane/or The Avenue, including traffic management measures to address any potential problems at the junctions with Winchester Rd and with on-street parking
provide a new/improved footpath/cycleway along the northern edge of the site as part of a route along the southern edge of Bishops Waltham to link with Priory Park and the Martin Street Site (BW2) and the Albany Farm site (BW4).
Environmental
provide substantial landscape framework to create a new settlement edge to the south and west
protect, retain and reinforce existing treed boundaries
provide on-site open space
minimise the impact of the access points on the SINC and Priory Park
improve/manage the SINC as a Natural Green Space and ensure no net detriment to biodiversity (including habitat isolation and fragmentation) through on site and, if necessary, off site measures
create a green corridor along the southern boundary of the siteto improve pedestrian and biodiversity links.
Infrastructure
contribute to the expansion of Bishops Waltham Infants and Junior Schools and other infrastructure needed to make the development acceptab

Policy Reference: LP1 MTRA4
Policy Title: Development in the Countryside
Policy Content: In the countryside, defined as land outside the built-up areas of Winchester, Whiteley and Waterlooville and the settlements covered by MTRA 2 and 3 above, the Local Planning Authority will only permit the following types of development:
. development which has an operational need for a countryside location, such as for agriculture, horticulture or forestry; or
. proposals for the reuse of existing rural buildings for employment, tourist accommodation, community use or affordable housing (to meet demonstrable local housing needs). Buildings should be of permanent construction and capable of use without major reconstruction; or
. expansion or redevelopment of existing buildings to facilitate the expansion on-site of established businesses or to meet an operational need, provided development is proportionate to the nature and scale of the site, its setting and countryside location; or
. small scale sites for low key tourist accommodation appropriate to the site, location and the setting.
Development proposed in accordance with this policy should not cause harm to the character and landscape of the area or neighbouring uses, or create inappropriate noise/light and traffic generation.

Policy Reference: DPD - TR6
Policy Title: TR6 - Planning Applications
Policy Content: Proposals for traveller accommodation outside the sites identified in policies TR1-TR4, including expansion of these sites, will be permitted within the settlement boundaries defined by Policy DM1 or through infilling in accordance with Policy MTRA3.

Sites outside the provisions of these policies (other than appropriate intensification under policy TR5) will only be permitted where they are for occupation by persons who:

1. Are defined as gypsies and travellers or travelling showpeople (Planning Policy for Traveller Sites 2015 Annexe 1 or a subsequent revision); and
2. Can demonstrate a personal or cultural need to be located in the areas; and
3. There is a lack of other suitable accommodation.

Sites must be in sustainable locations well related to existing communities, as defined by Policy CP5, and comply with the requirements of Policy TR7.

For further details see the Adopted Traveller DPD

Policy Reference: DPD - TR7
Policy Title: TR7 - Design Guidance and Layout
Policy Content: All sites to be considered through this Development Plan document or subsequent planning applications will be required to comply with Policy CP5 and the following in so far as they are relevant to the site and its location:-

Access and Parking
-provide safe vehicle and pedestrian acces from the site to the highway
-ensure that there is sufficient turning space within the site to allow for safe vehicular movement
-minimise conflict between pedestrians and vehicles on site
-no vehicle over 3.5 tonnes shall be stationed, parked or stored on site, unless necessary for the use of a travelling showpersons site.

Environmental
- avoid boundary treatment that has a detrimental visual impact on the character of the site and locality
- provide landscaping to reinforce the boundary of the site and to provide screening of views into/out of the site
- provide an area of open space within the site for safe children's play, located to avoid conflict with vehicles on the site contribute to the Solent Recreation Mitigation Strategy where required
- ensure that the site and the layout proposed on it would not cause harm to the significance or setting of heritage assets or biodiversity interests.

General
- provide details of wastewater infrastructure, including a foul drainage assessment and surface water drainage, incorporating SUDS where possible
- ensure that waste is stored appropriately for disposal and able to be collected in an efficient manner
- no commercial activities shall take place on the land, including the storage and sorting of materials, other than as necessary for the use as a travelling showpersons site
- minimise external lighting to avoid a detrimental impact on the surrounding locality

In addition to the above, plots for travelling showpersons should have adequate space for the storage and maintenance of equipment and be laid out to avoid conflict between vehicles and residents.
For further details please see Adopted Traveller DPD

Policy Reference: LP1 MTRA5
Policy Title: Major Commercial and Educational Establishments in the Countryside
Policy Content: The Local Planning Authority will support the retention and development of major commercial and

educational establishments which occupy rural locations in the District, where this will help them continue to contribute to the Districts economic prosperity. Because of their sensitive rural locations, masterplans should be prepared prior to development which identify the site opportunities and constraints, promote sensitive land and building stewardship, promote sustainable development, and maximise sustainable transport opportunities, whilst limiting impacts on the surrounding environment and communities.

Policy Reference: LPP2 - DM10
Policy Title: DM10 Facilities & Services In The Countryside
Policy Content: In the countryside, the development of essential facilities and services to serve local communities may exceptionally be permitted, where it complies with the Development Plan and:
i) there is an identified need for the development within that area
ii) a location in the countryside is essential for operational reasons or
iii) there are no suitable alternative sites for the proposed development within the defined built-up area of the settlement(s) which the development is intended to serve
iv) a landscape scheme is provided to minimise harmful impacts on landscape character and sense of place
v) traffic issues can be addressed satisfactorily and a traffic management plan is secured, where necessary to make the development acceptable in planning terms.

Policy Reference: LP1 MTRA3
Policy Title: Other Settlements in the Market Towns and Rural Area
Policy Content: Within those settlements in the Market Towns and Rural Area listed below the purpose of development should be to meet local needs through development, commensurate with their size, character and function.

Within the defined boundaries of the following settlements development and redevelopment opportunities will be supported
Cheriton, Compton Down, Corhampton, Droxford, Hambledon, Hursley, Itchen Abbas-part, Knowle, Littleton, Micheldever, Micheldever Station, Old Alresford, Otterbourne, South Wonston, Southdown, Southwick, Sparsholt, Sutton Scotney, Twyford, West Meon.

Within the following settlements, which have no clearly defined settlement boundary, development and redevelopment that consists of infilling of a small site within a continuously developed road frontage may be supported, where this would be of a form compatible with the character of the village and not involve the loss of important gaps between developed areas.

Abbots Worthy, Avington, Beauworth, Beeches Hill, Bighton, Bishops Sutton, Bramdean, Chilcomb, Compton Street, Crawley, Curbridge, Curdridge, Durley, Durley Street, East Stratton, Easton, Exton, Gundleton, Headbourne Worthy-part, Hundred Acres, Itchen Stoke, Kilmeston, Lower Upham, Martyr Worthy, Meonstoke, New Cheriton/Hinton Marsh, Newtown, North Boarhunt, Northbrook, Northington and Swarraton, Itchen Abbas -part, Otterbourne Hill, Ovington, Owslebury, Shawford, Shedfield, Shirrell Heath, Soberton, Soberton Heath, Stoke Charity, Tichborne, Upham, Warnford, Wonston, Woodmancott.

Other development proposals may be supported to reinforce a settlements role and function, to meet a community need or to realise local community aspirations. These should be identified through a Neighbourhood Plan or process which demonstrates clear community support.
To view this policy in full please go to chapter 6 of the Winchester District Local Plan Part 1 Joint Core Strategy.

http://www.winchester.gov.uk/planning-policy/local-plan-p

Policy Reference: LPP2 - DM3
Policy Title: DM3 Small Dwellings In The Countryside
Policy Content: The extension and replacement of existing smaller dwellings in the countryside will be limited so as to retain the stock of such dwellings within the District
Dwellings with gross external floorspace of up to 120 sq.m. on the date of the adoption of this Plan or as originally constructed whichever is the later will be permitted to extend by up to 25% of their original size
This also applies to any replacement of such dwellings
The Planning Authority will consider restricting permitted development rights in order to prevent further extensions which would exceed this provision Proposals will be expected to comply with the Development Plan

Policy Reference: LPP2 - DM13
Policy Title: DM13 Leisure & Recreation In The Countryside
Policy Content: Outside defined settlement boundaries, the development of new leisure and recreational facilities for which a countryside location is necessary, the expansion of established facilities, and the use of land for leisure and recreational activities will be permitted, where it accords with the Development Plan and

i) the development does not create unacceptable visual or noise intrusion in the countryside, either by itself or when viewed cumulatively with other developments
ii) additional buildings, structures and ancillary developments are the minimum required for the operation of the site
iii) the operation of the site will not cause an unacceptable alteration in the character of the area, including by all forms of pollution, or harm biodiversity, heritage assets, tranquillity or public safety

iv) appropriate landscaping schemes and screening are provided.

Artificial lighting will only be permitted where visually acceptable and strictly necessary. Its design and operation may be limited by condition in order to minimise light pollution in the countryside.

Policy Reference: LPP2 - DM1
Policy Title: DM1 Location Of New Development
Policy Content: Development that accords with the Development Plan will be permitted within the defined boundaries of the following settlements, as shown on the Policies Map:
Bishops Waltham, Colden Common, Compton Down, Denmead, Hursley, Kings Worthy, Knowle, Littleton, Micheldever, Micheldever Station, New Alresford, Old Alresford, Otterbourne, South Wonston, Southdown, Southwick, Sparsholt, Sutton Scotney, Swanmore, Waltham Chase, Whiteley, Wickham, Winchester Town.
Limited infilling will also be permitted in other settlements listed under Policy MTRA3 in the circumstances outlined in that policy.
Outside of these areas, countryside policies will apply and only development appropriate to a countryside location will be permitted, as specified in Policies MTRA4, MTRA5, DM10 to DM13, etc.

Informative

Note:- this reply does not necessarily give the full wording of the relevant Proposal(s).
More detailed information on the policies and proposals which apply to the land and the explanatory text accompanying these proposals, can be found in the Winchester District Local Plan Review 2006, copies of which can be inspected at
Winchester City Council
Planning Department,
City Offices,
Colebrook Street,
Winchester,
Hants,
SO23 9LJ,
or local libraries.

The property is covered by the Hampshire County Structure Plan (Review) 1996-2011, adopted on 27 March 2000. This replaces the previous County Structure Plan and extends strategic guidance to 2011. A Major Development Area is proposed at West of Waterlooville, with the possibility of a further Major Development Area at Winchester City (North), if a need is demonstrated.
The sites for these and other development requirements are detailed in the Winchester District Local Plan Review 2006.
Informative: This reply reflects policies or proposals in any existing development plan and in any formally proposed alteration or replacement plan, but does not include policies contained in planning guidance notes.

ROADS AND PUBLIC RIGHTS OF WAY

Roadways, footways and footpaths

2.1 Which of the roads, footways and footpaths named in the application for this search (via boxes B and C) are:

(a) highways maintainable at public expense

See attached sheet from Hampshire County Council

Informative

(1) If a road, footpath or footway is not a highway, there may be no right to use it. The Council cannot express an opinion, without seeing the title plan of the property and carrying out an inspection,
whether or not any existing or proposed highway directly abuts the boundary of the property.
(2) The question is answered on the basis of its inclusion on the list of highways Maintainable at Public Expense held under Section 36(6) of the Highways Act 1980
(3) The reply to this enquiry is restricted to highways maintainable at public expense within the meaning of Section 36 of the Highways Act 1980. If a road, footpath or

footway is not publicly maintained, the Council cannot express an opinion as to what rights exist over it.
(4) An affirmative reply does not imply that the public highway immediately abuts the boundary of the property.
(5) Box C Informative - If the information regarding the extent of the highway is required, a separate inquiry including a plan showing the area in question should be made to The Highway Asset Information Team, Hampshire County Council
https://www.hants.gov.uk/transport/searchesrightscharges/highwayextent

(b) subject to adoption and, supported by a bond or bond waiver

See attached sheet from Hampshire County Council

(c) to be made up by a local authority who will reclaim the cost from the frontagers

See attached sheet from Hampshire County Council

(d) to be adopted by a local authority without reclaiming the cost from the frontagers

See attached sheet from Hampshire County Council

Public rights of way
2.2 Is any public right of way which abuts on, or crosses the property, shown in a definitive map or revised definitive map?

See attached sheet from Hampshire County Council

2.3 Are there any pending applications to record a public right of way that abuts, or crosses the property, on the Register?

See attached sheet from Hampshire County Council

2.4 Are there any legal orders to stop up, divert, alter or create a public right of way which abuts, or crosses the property not yet implemented or shown on a definitive map?

See attached sheet from Hampshire County Council

2.5 If so, please attach a plan showing the approximate route.

See attached sheet from Hampshire County Council

Informative

A definitive map for
[insert local authority name]
has now been published
[insert relevant date].
However, a survey of all paths has not been completed and whilst this does not reclude the existence of unrecorded rights of way, the local authority is unaware of any claimed rights of way existing over the search site. If in doubt please contact [insert contact name and details] for further information

Or,

No, none. However additional public rights of way may exist other than those shown on the definitive map.

Or, in the case of a positive response

Yes, [Public footpath / bridleway / byway open to all traffic/Path No. xx crosses/abuts - delete as applicable] the site as shown on the attached plan. Additional public rights of way may exist other than those shown on

the definitive map. If in doubt please contact
[insert contact name and details]
for further information

OTHER MATTERS

Apart from matters entered on the registers of local land charges, do any of the following matters apply to the property? If so, how can copies of the relevant documents be obtained?

Note: Matters entered onto the Local Land Charges Register, or visible by property/site inspection, will not be referred to (where relevant) in answer to the enquiries 3.1. to 3.15. below.

3.1 Land required for public purposes
Is the property included in land required for public purposes?

No

3.2 Land to be acquired for road works
Is the property included in land to be acquired for road works?

See attached sheet from Hampshire County Council

3.3 Drainage matters
(a) Is the property served by a SuDS which is adopted by the SuDS Approval Body (SAB) for which there will be a surface water drainage charge?

See attached sheet from Hampshire County Council

(b) Are there SuDS features within the boundary of the property?

See attached sheet from Hampshire County Council

(c) If the property benefits from a SuDS for which there is a charge, who bills the property for the surface water drainage charge?

See attached sheet from Hampshire County Council

3.4 Nearby road schemes
Is the property (or will it be) within 200 metres of any of the following?
(a) the centre line of a new trunk road or special road specified in any order, draft order or scheme

See attached sheet from Hampshire County Council

(b) the centre line of a proposed alteration or improvement to an existing road involving construction of a subway, underpass, flyover, footbridge, elevated road or dual carriageway

See attached sheet from Hampshire County Council

(c) the outer limits of construction works for a proposed alteration or improvement to an existing road involving:-

See attached sheet from Hampshire County Council

(d) the outer limits of:

See attached sheet from Hampshire County Council

(e) the centre line of the proposed route of a new road under proposals published for public consultation

See attached sheet from Hampshire County Council

(f) the outer limits of:-

See attached sheet from Hampshire County Council

3.5 Nearby railway schemes
(a) Is the property (or will it be) within 200 metres of the centre line of a proposed railway, tramway, light railway or monorail?

See attached sheet from Hampshire County Council

(b) Are there are any proposals for a railway, tramway, light railway or monorail within the Local Authority's boundary?

See attached sheet from Hampshire County Council

3.6 Traffic schemes
Has a local authority approved but not yet implemented any of the following for the roads, footways and footpaths which are named in Boxes B and C and are within 200 metres of the boundaries of the property?
(a) permanent stopping up or diversion

See attached sheet from Hampshire County Council

(b) waiting or loading restrictions

See attached sheet from Hampshire County Council

(c) one way driving

See attached sheet from Hampshire County Council

(d) prohibition of driving

See attached sheet from Hampshire County Council

(e) pedestrianisation

See attached sheet from Hampshire County Council

(f) vehicle width or weight restriction

See attached sheet from Hampshire County Council

(g) traffic calming works including road humps

See attached sheet from Hampshire County Council

(h) residents parking controls

See attached sheet from Hampshire County Council

(i) minor road widening or improvement

See attached sheet from Hampshire County Council

Informative

In some circumstances, road closure orders can be obtained by third parties from magistrates courts or can be made by the Secretary of State for Transport, without involving the Council

(j) pedestrian crossings

See attached sheet from Hampshire County Council

(k) cycle tracks

See attached sheet from Hampshire County Council

(l) bridge building

See attached sheet from Hampshire County Council

3.7 Outstanding notices
Do any statutory notices which relate to the following matters subsist in relation to the property other than those revealed in a response to any other enquiry in this form?
(a) building works

None

(b) environment

None

(c) health and safety

None

(d) housing

None

(e) highways

See attached sheet from Hampshire County Council

(f) public health

None

(g) flood and coastal erosion risk management

Please contact Environment Agency by email enquiries@environment-agency.gov.uk or telephone 03708 506 506

3.8 Contravention of building regulations
Has a local authority authorised in relation to the property any proceedings for the

contravention of any provision contained in building regulations?

No

3.9 Notices, orders, directions and proceedings under Planning Acts
Do any of the following subsist in relation to the property, or has a local authority decided to issue, serve, make or commence any of the following?
(a) an enforcement notice

No.

(b) a stop notice

No.

(c) a listed building enforcement notice

No.

(d) a breach of condition notice

No.

(e) a planning contravention notice

No.

(f) another notice relating to breach of planning control

No.

(g) a listed building repairs notice

No.

(h) in the case of a listed building deliberately allowed to fall into disrepair, a compulsory purchase order with a direction for minimum compensation

No.

(i) a building preservation notice

No.

(j) a direction restricting permitted development

No.

(k) an order revoking or modifying planning permission

No.

(l) an order requiring discontinuance of use or alteration or removal of building or works

No.

(m) a tree preservation order

None

(n) proceedings to enforce a planning agreement or planning contribution

None

3.10 Community infrastructure levy (CIL)

(a) Is there a CIL charging schedule?

Yes, a charging schedule was adopted in January 2014 for Winchester City Planning Area.
A charging schedule is now in place from 1st April 2017 for the South Downs National Park Area

(b) If, yes, do any of the following subsist in relation to the property, or has a local authority decided to issue, serve, make or commence any of the following:-

(i) a liability notice?

Application No: 16/01322/FUL
Description: (Additional details submitted 01.09.16) Erection of 66 dwellings with associated access via Albany Road, associated parking, landscaping and public open space (Phase 1).
Address: Land To The West Of, Tangier Lane, Bishops Waltham, Hampshire
Liability Notice Date: 22/10/2021

(ii) a notice of chargeable development?

No.

(iii) a demand notice?

Application No: 16/01322/FUL
Description: (Additional details submitted 01.09.16) Erection of 66 dwellings with associated access via Albany Road, associated parking, landscaping and public open space (Phase 1).
Address: Land To The West Of, Tangier Lane, Bishops Waltham, Hampshire
Demand Notice Issued Date: 22/10/2021

(iv) a default liability notice?

No.

(v) an assumption of liability notice?

Application No: 16/01322/FUL
Description: (Additional details submitted 01.09.16) Erection of 66 dwellings with associated access via Albany Road, associated parking, landscaping and public open space (Phase 1).
Address: Land To The West Of, Tangier Lane, Bishops Waltham, Hampshire
Latest Assumption of Liability Notice Date: 18/04/2018

(vi) a commencement notice?

Application No: 16/01322/FUL
Description: (Additional details submitted 01.09.16) Erection of 66 dwellings with associated access via Albany Road, associated parking, landscaping and public open space (Phase 1).
Address: Land To The West Of, Tangier Lane, Bishops Waltham, Hampshire
Commencement Notice Received Date: 10/06/2020

(c) Has any demand notice been suspended?

No

(d) Has the Local Authority received full or part payment of any CIL liability?

Application No: 16/01322/FUL
Description: (Additional details submitted 01.09.16) Erection of 66 dwellings with associated access via Albany Road, associated parking, landscaping and public open space (Phase 1).

Address: Land To The West Of, Tangier Lane, Bishops Waltham, Hampshire
All Payments Received: 22/02/2022 for the market housing, including 10 Colt View (plot 34). Social housing relief was granted for the affordable units elsewhere on the site, so there is still an underlying CIL liability for this planning permission until 15/06/2027. However, even if the relief lapsed it wouldn't affect 10 Colt View.

(e) Has the Local Authority received any appeal against any of the above?

No

(f) Has a decision been taken to apply for a liability order?

No

(g) Has a liability order been granted?

No

(h) Have any other enforcement measures been taken?

No

3.11 Conservation area
Do the following apply in relation to the property?
(a) the making of the area a conservation area before 31 August 1974

No

(b) an unimplemented resolution to designate the area a Conservation Area

Not applicable.

3.12 Compulsory purchase
Has any enforceable order or decision been made to compulsorily purchase or acquire the property?

See attached sheet from Hampshire County Council

No - Reply from Winchester City Council

3.13 Contaminated land
Do any of the following apply (including any relating to land adjacent to or adjoining the property which has been identified as contaminated land because it is in such a condition that harm or pollution of controlled waters might be caused on the property)?
(a) a contaminated land notice

No.

(b) in relation to a register maintained under section 78R of the Environmental Protection Act 1990

No.

(c) consultation with the owner or occupier of the property conducted under section 78G(3) of the Environmental Protection Act 1990 before the service of a remediation notice

No.

3.14 Radon gas

Do records indicate that the property is in a "Radon Affected Area" as identified by Public Health England or Public Health Wales?

No, not to this Councils knowledge. However for an individual dwelling, an estimate of the probability that the property is above the recommended action level for Radon can be obtained from www.UKradon.org.

3.15 Assets of Community Value

(a) Has the property been nominated as an asset of community value?

(i) Is it listed as an asset of community value? No
(ii) Was it excluded and placed on the "nominated but not listed" list? No
(iii) Has the listing expired? No
(iv) Is the Local Authority reviewing or proposing to review the listing? No
(v) Are there any subsisting appeals against the listing? No

(b) If the property is listed:

(i) Has the Local Authority decided to apply to the Land Registry for an entry or cancellation of a restriction in respect of listed land affecting the property? No
(ii) Has the Local Authority received a notice of disposal? No
(iii) Has any community interest group requested to be treated as a bidder? No

These replies have been given in accordance with the notes appended to CON29 form.

References to the provisions of particular Acts of Parliament or Regulations include any provisions which they have replaced and also include existing or future amendments or re-enactments.

The replies will be given in the belief that they are in accordance with information presently available to the officers of the replying local authority, but none of the local authorities or their officers accepts legal responsibility for an incorrect reply, except for negligence. Any legal responsibility for negligence will be owed to the person who raised the enquiries and the person on whose behalf they were raised. It will also be owed to any other person who has knowledge (personally or though an agent) of the replies before the time when he purchases, takes a tenancy of, or lends money on the security of the property or (if earlier) the time when he becomes contractually bound to do so.

This Form should be read in conjunction with the guidance notes available separately.

Area means any area in which the property is located.

References to the Local Authority include any predecessor Local Authority and also any Local Authority committee, sub-committee or other body or person exercising powers delegated by the Local Authority and their approval includes their decision to proceed. The replies given to certain enquiries cover knowledge and actions of both the District Local Authority and County Local Authority.

Where relevant, the source department for copy documents should be provided.

Hampshire County Council

REPLY TO STANDARD ENQUIRIES OF LOCAL AUTHORITY (2016)

Client Official

Winchester City Council
City Offices
Colebrook Street
Winchester

Client Reference: 2324_01246

HCC Reference: CON29/2023/48587

Date of Search

14 September 2023

Local Authority

Hampshire County Council.
Hampshire Highways,
2nd Floor, Trafalgar House North,
Trafalgar Street,
Winchester.
SO23 9DH.

Compiled By

Hampshire Highways.
Land Charges Section,
Economy, Transport & Environment
Department,
land.charges@hants.gov.uk

Property Address

10 Colt View, Bishops Waltham, Southampton, SO32 1TF

Hampshire County Council

REPLY TO STANDARD ENQUIRIES OF LOCAL AUTHORITY (2016)

Roads and Public Rights of Way

2.1 Which of the roads, footways and footpaths named in the application for this search (via boxes B and C) are:	
(a) highways maintainable at public expense	No
(b) subject to adoption and, supported by a bond or bond waiver	N/A
(c) to be made up by a local authority who will reclaim the cost from the frontagers	N/A
(d) to be adopted by a local authority without reclaiming the cost from the frontagers	N/A
2.2 Is any public right of way which abuts on, or crosses the property, shown on a definitive map or revised definitive map?	No
2.3 Are there any pending applications to record a public right of way that abuts, or crosses the property, on a definitive map or revised definitive map?	No
2.4 Are there any legal orders to stop up, divert, alter or create a public right of way which abuts, or crosses the property not yet implemented or shown on a definitive map?	No
2.5 If so, please attach a plan showing the approximate route.	If the answer to question 2.2, 2.3 or 2.4 is yes, then a plan will be attached.

Other Matters

3.2 Is the property included in land to be acquired for road works?	No
3.3 Drainage matters	
(a) Is the property served by a sustainable urban drainage system (SuDS)?	Not implemented
(b) Are there SuDS features within the boundary of the property? If yes, is the owner responsible for maintenance?	No: There is currently no SuDS Approval Body to adopt a SuDS.
(c) If the property benefits from a SuDS for which there is a charge, who bills the property for the surface water drainage charge?	No: No further information available, please contact the water drainage provider or relevant management company.
3.4 Is the property (or will it be) within 200 metres of any of the following?	
(a) the centre line of a new trunk road or special	No

road specified in any order, draft order or scheme	
(b) the centre line of a proposed alteration or improvement to an existing road involving construction of a subway, underpass, flyover, footbridge, elevated road or dual carriageway	No
(c)(i-ii) the outer limits of construction works for a proposed alteration or improvement to an existing road involving:- (i) construction of a roundabout (other than a mini roundabout), or (ii) widening by construction of one or more additional traffic lanes	No
(d)(i-iii) the outer limits of:- (i) construction of a new road to be built by a local authority, (ii) an approved alteration or improvement to an existing road involving construction of a subway, underpass, flyover, footbridge, elevated road or dual carriageway, (iii) construction of a roundabout (other than a mini roundabout) or widening by construction of one or more additional traffic lanes	No
(e) the centre line of the proposed route of a new road under proposals published for public consultation	No
(f)(i-iii) the outer limits of:- (i) construction of a proposed alteration or improvement to an existing road involving construction of a subway, underpass, flyover, footbridge, elevated road or dual carriageway, (ii) construction of a roundabout (other than a mini roundabout), (iii) widening by construction of one or more additional traffic lanes, under proposals published for public consultation	No
3.5 Nearby railway schemes	
(a) Is the property (or will it be) within 200 metres of the centre line of a proposed railway, tramway, light railway or monorail?	No
(b) Are there are any proposals for a railway, tramway, light railway or monorail within the Local Authority's boundary?	No
3.6 Has a local authority approved but not yet implemented any of the following for the roads, footways and footpaths which are named in Boxes B and C and are within 200 metres of the boundaries of the property?	No
(a) permanent stopping up or diversion	See response for question 3.6
(b) waiting or loading restrictions	See response for question 3.6
(c) one way driving	See response for question 3.6
(d) prohibition of driving	See response for question 3.6
(e) pedestrianisation	See response for question 3.6
(f) vehicle width or weight restriction	See response for question 3.6
(g) traffic calming works including road humps	See response for question 3.6

(h) residents parking controls	See response for question 3.6
(i) minor road widening or improvement	See response for question 3.6
(j) pedestrian crossings	See response for question 3.6
(k) cycle tracks	See response for question 3.6
(l) bridge building	See response for question 3.6
3.7 Do any statutory notices which relate to the following matters subsist in relation to the property other than those revealed in a response to any other enquiry in this form?	
(a) building works	Not answered by the Highway Authority - You have not been charged for this sub question.
(b) environment	Not answered by the Highway Authority - You have not been charged for this sub question.
(c) health and safety	Not answered by the Highway Authority - You have not been charged for this sub question.
(d) housing	Not answered by the Highway Authority - You have not been charged for this sub question.
(e) highways	No
(f) public health	Not answered by the Highway Authority - You have not been charged for this sub question.
(g) flood and coastal erosion risk management	No
3.12 Has any enforceable order or decision been made to compulsorily purchase or acquire the property?	No

Appendix 4

Additional Information

Reference Source Information:

"Save for information provided verbally by a member of the council, all the information in this report has been obtained by inspection of the Local Land Charges Register, the Planning register, the Building Regulations Register, the Local or Unitary Authority Transport & Policies Programme, the Highways Agency, local council departments, the local and/or county council websites and commercial websites". **Any questions regarding this information supplied herein should be sent directly to the Land Charges Section, Universal Services, Trafalgar Street, Winchester. SO23 9DH. land.charges@hants.gov.uk**

2.1(a) – The reply to this enquiry is restricted to highways maintainable at public expense within the meaning of Section 36 of the Highways Act 1980. If a road, footpath or footway is not publicly maintained, the local authority cannot express an opinion as to what rights exist over it. An affirmative reply does not imply that the public highway immediately abuts the boundary of the property. If information regarding the extent of the highway is required, a separate inquiry including a plan of the area in question should be made via our Web Form https://www.hants.gov.uk/transport/searchesrightscharges/highwayextent. An Additional fee will be charged for this information. If the road, footpath or footway should form part of a Motorway or Trunk Road please contact the Highways Agency: ha_info@highways.gsi.gov.uk 0300 1235000

2.1 (b) – If you would like a copy of the adoption agreement please apply via https://www.hants.gov.uk/transport/searchesrightscharges/highwayagreements

2.1 (c) – If a road is declared to be a prospectively maintainable highway under the PUSWA 1950/NRSWA 1991 please see https://www.hants.gov.uk/transport/searchesrightscharges/prospectivelymaintainable

2.5 – A definitive map for Hampshire County Council has been published (15 December 2007). However, survey of all paths has not been completed and whilst this does not preclude the existence of unrecorded public rights of way, the local authority is unaware of any claimed public rights of way existing over the search site. If in doubt please contact the Countryside Access Team, Hampshire County Council, The Castle, Winchester, Hampshire, SO23 8UL (0300 555 1391). countryside@hants.gov.uk. Please note a fee may be charged.

3.3 – Hampshire County Council and not a SuDS Approval Body and have no requirement to formally approve or adopt any Sustainable Drainage System. The Flood and Water Management Act did not allocate any authority the powers of a SAB and therefore, no organisation has a requirement to adopt and maintain a SuDS, this must be decided and documented, on a site by site basis, by the developer at design stage.

4 – A mini roundabout is a roundabout having a one-way circulatory carriageway around a flush or slightly raised circular marking less than 4 meters in diameter and with or without flared approaches.

This enquiry refers to proposals by bodies (such as private developers) other than the local authority or the Secretary of State.

If you would like a copy of the highway agreement please apply via https://www.hants.gov.uk/transport/searchesrightscharges/highwayagreements

22.1 - Please note that the New Forest and Otterbourne Village Green are exempt from the Commons Registration Act 1965 / Commons Act 2006. For the New Forest, enquiries should be made to The Clerk to the Verderers http://www.verderers.org.uk

Winchester City Council

Register of Local Land Charges
Schedule to Official Certificate of Search

Part 3: Planning Charges
(b) Other planning charges

Description of charge (including reference to appropriate statutory provision)	Originating Authority	Place where relevant documents may be inspected	Date of Registration
Part III 4154 SECTION 106 dating 27 June 2017 given to Winchester City Council by Hampshire County Council (1) Bishops Waltham Parish Council (2) John Eric Youles and Leslie Joy Youles (3) Causequest Limited and Graceshire Limited (4) Crest Nicholson Operations Limited (5) and Crest Nicholson PLC (6) concerning Land to the West of Tangier Lane, Bishops Waltham, Hampshire, SO32 1BU. Please note that there is no requirement for the Solent Recreation Migration Partnership contribution (referred to in recital 10(v) and in clause 21(e)) to be paid as confirmed on 8th May 2018 by Elizabeth Ellam, Planning Solicitor. (Case Ref 16/01322/FUL) Town and Country Planning Act 1990 (as amended) TLC Ref: PT600375	Winchester City Council	Winchester City Council, Land Charges Section, City Offices, Winchester, Hants	27/06/2017
Alt Ref: WPP-06931432 Full Application Decision dated 09/07/2018 Application Reference Number: 16/01322/FUL : Date of Decision: 30/06/2017 : Condition Number 05 (Materials). Variation of Condition 05 to make reference to 'clay tiles' rather than 'clay plain tiles' Application Number: 18/01114/FUL Appeal Lodged Dated 03/09/2018 Appeal Allowed - Costs Refused Date Appeal Determined 02/08/2019 Land To The West Of Tangier Lane Bishops Waltham SO32 1BU TLC Ref: AP654074	Winchester City Council	Winchester City Council, Land Charges Section, City Offices, Winchester, Hants	06/08/2019
Full Application	Winchester City Council	Winchester City Council, Land Charges Section,	04/07/2017

Winchester City Council

Register of Local Land Charges
Schedule to Official Certificate of Search

Part 3: Planning Charges
(b) Other planning charges

Description of charge (including reference to appropriate statutory provision)	Originating Authority	Place where relevant documents may be inspected	Date of Registration
Decision dated 30/06/2017 (Additional details submitted 01.09.16) Erection of 66 dwellings with associated access via Albany Road, associated parking, landscaping and public open space (Phase 1). Application Number: 16/01322/FUL Land To The West Of Tangier Lane Bishops Waltham Hampshire TLC Ref: AP517590		City Offices, Winchester, Hants	
Alt Ref: W06920/02 Full Application Decision dated 22/05/1985 Erection of house Application Number: 85/00788/OLD The Vineyard Tangier Lane Bishops Waltham Southampton Hampshire SO32 1BU TLC Ref: AP82831	Winchester City Council	Winchester City Council, Land Charges Section, City Offices, Winchester, Hants	22/05/1985
Alt Ref: W06920/01 Full Application Decision dated 19/09/1984 Erection of agricultural workers dwelling Application Number: 84/00862/OLD The Vineyard	Winchester City Council	Winchester City Council, Land Charges Section, City Offices, Winchester, Hants	19/09/1984

Winchester City Council

Register of Local Land Charges
Schedule to Official Certificate of Search

Part 3: Planning Charges
(b) Other planning charges

Description of charge (including reference to appropriate statutory provision)	Originating Authority	Place where relevant documents may be inspected	Date of Registration
Tangier Lane Bishops Waltham Southampton Hampshire SO32 1BU TLC Ref: AP52550			

Winchester City Council

Register of Local Land Charges
Schedule to Official Certificate of Search

Part 4: Miscellaneous Charges			
Description of charge (including reference to appropriate statutory provision)	**Originating Authority**	**Place where relevant documents may be inspected**	**Date of Registration**
PART IV 9280 SECTION 278 DEED OF AGREEMENT dated 20 January 2022 between Hampshire County Council and Crest Nicholson Operations Limited for Highway Works at Albany Road, Bishops Waltham, Hampshire. Highways Act 1980 TLC Ref: PF921826	Hampshire County County Council, The Castle Winchester	Hampshire County Council, The Castle, Winchester.	20/01/2022
IV 9232 S278 AGREEMENT dated 19 February 2020 between Hampshire County Council and Crest Nicholson Operations Limited and National House Building Council relating to the construction of a highway at land to the east of Tangier Lane, Bishops Waltham Hampshire (Planning Case Refs: 16/01327/OUT & 18/01144/REM HCC File Ref: Legal 127048/CNE) Highways Act 1980 TLC Ref: PF806043	Hampshire County County Council, The Castle Winchester	Hampshire County Council, The Castle, Winchester.	21/02/2020